

TENTATIVE RULING FOR July 1, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB1936791

JOSE MEJIA CASTELLON v. GARY SCOTT ACKERMAN, et al.

TENTATIVE RULING

This consolidated litigation arises from a vehicle accident. On December 4, 2019, Plaintiff Jose Mejia Castellon filed his Complaint against Defendants Gary Scott Ackerman (Ackerman) and Suzanne Ackerman (Suzanne). The Complaint pleads 2 causes of action: (1) negligence and (2) motor vehicle. Defendant Ackerman answered; no default, dismissal, or answer was located for Defendant Suzanne.

Also on December 4, 2019, Plaintiff Cristian Alfaro filed his Complaint against Ackerman and later dismissed party (Suzanne) [CIVDS1936792]. Alfaro's Complaint pleads two causes of action: (1) motor vehicle and (2) negligence. Defendant Ackerman answered.

On April 6, 2023, Plaintiffs Daniela Fuentes, Stephanie Viera, and Victor Viera (minor through guardian ad litem Angelica Medrano) filed their Complaint against Defendants Ackerman and Thermodyne International, Ltd. [CIVSB2308491]. Their operative First Amended Complaint pleads 2 causes of action: (1) negligence, and (2) wrongful death. Defendants Ackerman and Thermodyne answered.

These consolidated litigations are predicated upon an accident occurring on December 4, 2017, on State Route 138, near Pine Tree Rd. On that day, Ackerman was driving westbound while intoxicated. He fell asleep, resulting in him veering into the dirt shoulder, hitting the paddle marker, turning to the left, entering the opposite lane, and colliding with the vehicle driven by Castellon with passengers Alfaro, and Delmy Mejia Viera (Decedent). Plaintiffs Alfaro, Fuentes, Stephanie, and Victor are Decedent's children.

Plaintiff Alfaro moved to amend his Complaint to add punitive damages allegations against Defendant Ackerman and to add Thermodyne International, Ltd. as the employer of Ackerman, and thereby, liable under a respondeat superior/vicarious liability for his negligent driving. Defendant Thermodyne opposed. Plaintiff Alfaro replied.

On June 3, 2026, the Court granted the request to file an amended complaint to plead punitive damages. It further continued the motion related to adding Thermodyne as a defendant so the parties could address whether such was futile under Code of Civil Procedure section 583.210 and 583.250. Per that order, Defendant Thermodyne filed its supplemental brief on June 12, 2026, and Plaintiff Alfaro filed his supplemental brief on June 22, 2026.

Within the court's original tentative ruling (6/3/26) it was noted that although Alfaro will be naming Thermodyne well past 2 years after the vehicle accident and Decedent's death, its liability is predicated upon the doctrine of respondeat superior for the acts of Ackerman and would relate back to the filing of the original Complaint. Accordingly, the negligence and wrongful death causes of action against Thermodyne would not be time-barred.

Nonetheless, the court's original analysis set forth in the tentative ruling indicated the naming of Thermodyne may be futile if Thermodyne was required to be served within 3-years of the Complaint's filing date, *to wit*:

A plaintiff shall serve the summons and complaint on a defendant within 3 years after the action is commenced against that defendant. (Code Civ. Proc., §583.210, subd. (a).) An action is commenced when the complaint is filed. (Code Civ. Proc., §583.210, subd. (a).) For Doe-named defendants, the 3 years runs from the date the complaint is filed, predicated upon the relation-back doctrine. (*Inversiones Papaluchi S.A.S. v. Superior Court (Robinson Helicopter Company, Inc.)* (2018) 20 Cal.App.5th 1055, 1061.) "In short, a plaintiff has three years from the date of filing the complaint to identify and serve a Doe Defendant." (*Ibid.*)

If service of the summons and complaint is not completed within 3 years, the action shall not be further prosecuted, no further proceedings shall be held, and the action shall be dismissed by the court on its own motion or by a motion from any interested party. (Code Civ. Proc., §583.250, subd. (a).) Dismissal is mandatory unless an extension, excuse, or exception exists as provided by statute. (Code Civ. Proc., §583.250, subd. (b).)

Although Defendant Thermodyne is not named as a Doe Defendant, Plaintiff Alfaro relies on the relation back doctrine to render the claims against Thermodyne timely. In doing so, he is subject to the mandatory dismissal statutes, which require service of the Summons and Complaint within 3 years of the defendant's naming. If Thermodyne is deemed named as of December 4, 2019, then it needed to be served no later than December 4, 2022. Considering the service of the Summons and Proposed FAC on Thermodyne will occur in 2026, after the amend motion is granted, the service would be subject to the mandatory dismissal statute.

Defendant's supplemental brief agrees with the above, and notes that although Plaintiff is not naming it through the Doe Amendment procedure, non-compliance with the procedures under Code of Civil Procedure section 474 can be cured and court can allow rectification of the defect. (*Woo v. Superior Court (Zarabi)* (1999) 75 Cal.App.4th 169, 177.) However, the problem with Defendant's argument is that Plaintiff has not utilized the Code of Civil Procedure section 474 mechanism. This is not a situation where the relation back doctrine rests on a properly filed Doe Amendment. Plaintiff is entitled to rely on the relation-back doctrine because his theory of liability against Thermodyne rests solely on the conduct

of Ackerman, and the relation back doctrine will preclude a statute of limitation defense if the original and amended pleading relate to the same general set of facts. (*Smeltzley v. Nicholson Mfg. Co.* (1977) 18 Cal.3d 932, 934.)

The questions posed here is since Thermodyne is being newly added to the litigation, but its liability relates back to the facts in the original complaint so to avoid a statute of limitation defense, did Plaintiff need to name, file, and serve Thermodyne within 3 years of the Complaint's filing to satisfy the mandatory 3-year service requirement under Code of Civil Procedure section 583.210, subdivision (a)? The answer is no.

In addressing a defendant's liability as an alter ego defendant, the *Hennessey's Tavern, Inc. v. American Air Filter Co.* (1988) 204 Cal.App.3d 1351, 1359-60, Court of Appeal held in pertinent part:

The nature and purpose of the three-year service of process statute (§583.210) and the statute of limitations are virtually identical. [Citation.] A statute of limitations serves to promote the public policy of furthering justice by precluding the assertion of stale claims. [Citation.] That public policy would not be served by applying the time bar of the mandatory time for service statute [citation] to service of process upon an alter ego defendant first named in an amended complaint. The alter ego's liability to the plaintiff, if any, is identical with that of the already-named defendant, its "other self," and the issue of a stale claim could not be asserted by the alter ego.

It is established that an action may be brought against an alter ego defendant after the statute of limitations applicable to the cause of action alleged in the original complaint has expired. [Citations.]

When a defendant is named in the original complaint by fictitious name, but is identified by his true name in an amended complaint, the "relation back" doctrine applies and the action commences as to such defendant when the original complaint is filed. However, when a new defendant is added to an action, the action commences as to him at the time the complaint is filed naming him as a new defendant. [Citations.]

When a defendant is first named in an amended complaint, and is alleged to be the alter ego of a defendant named in the original complaint, he is brought into the action as a new defendant and the action is commenced as to him at the time the amended complaint naming him is filed. It is necessary that the new defendant be named in the amended complaint and summons issued thereon, and that they be served upon him, in order for the court to acquire jurisdiction over him and he be afforded his due process rights to notice and the opportunity to be heard. This is true even though the alter ego defendant is considered to be identical with, i.e., the "other self" of, the defendant named in the original complaint.

Based on the foregoing we hold that an alter ego defendant added as a new defendant in an amended complaint must be served with the amended complaint and summons thereon within three years after the filing of the amended complaint first naming such defendant.

The above reasoning is also applicable to a vicariously liable employer-defendant. Under such circumstances, imposition of liability upon the employer via respondeat superior is not based upon the employer's independent culpable conduct requiring distinct substantive relief. Such liability goes hand-in-hand with the conduct of the employee defendant, which was alleged in the original Complaint. Although the theory of liability against the employer defendant relates back to the original complaint's filing, the employer defendant is still a newly named defendant for purposes of the 3-year service of

process statute. Therefore, contrary to this court's original analysis, it cannot be said that Plaintiff Alfaro's naming of Thermodyne as a defendant would be futile.

In addition, judicial policy favors resolution on the merits, and courts liberally grant leave to amend. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) If a motion to amend is timely made and the opposing party will not be prejudiced, it is an error to refuse permission to amend, and, if the denial results in a party being deprived of asserting a meritorious cause of action or defense, the error is an abuse of discretion. (*Morgan v. Superior Court (Morgan)* (1959) 172 Cal.App.2d 527, 530.) The court finds that defendant Thermodyne will not be substantially prejudiced by allowing the requested amendment as Thermodyne has already been a party to the related cases (Fuentes action) and actively participating in discovery.

RULING

The Court grants Plaintiff Alfaro's Motion for Leave to Amend to name Thermodyne International, Ltd. as a Defendant. Plaintiff Alfaro is to file and serve his First Amended Complaint within the next 5 court days.